SUNPRO CORPORATION
1177 E Venture Dr
St George, UT 84790
(435) 634-2220

PROPOSAL DATE: 8/27/2025
VERSION: 25.6.9
PREPARED BY: KEVIN GILL 435-669-5347

PROPOSAL/AGREEMENT

SUBMITTED TO: RIGAN
ADDRESS: RODRIQUEZ
St George

JOB NAME: RODRIQUEZ
DATE OF PLAN 1/0/1900
CONTACT: 0

SUNPRO Building Materials, Inc. ("SUNPRO") hereby agrees to furnish all labor and material for the completion of the work described below. This Proposal does not include design services. Design services, if desired, shall be contracted for and paid for by the Purchaser prior to entering into this Agreement.

DESCRIPTION OF WORK:

ATTIC	R-38 LOOSE FILL FIBERGLASS
EXTERIOR WALLS	R-19 UNFACED FIBERGLASS BATTS
HOUSE TO GARAGE WALL	R-19 KRAFT FACED FIBERGLASS BATTS
JOIST ENDS	R-19 UNFACED FIBERGLASS BATTS
KNEE WALLS	R-19 KRAFT FACED FIBERGLASS BATTS
LOW PRESSURE EXPANDING FOAM	FOAM AROUND WINDOWS, DOORS, EXTERIOR PENETRATIONS

EXCLUSIONS:

DOES NOT INCLUDE ANYTHING BEYOND THE SCOPE OF WORK LISTED ABOVE

PRICE: . **$8,631.00** (Subject to special pricing provisions in Exhibit A)

OPTIONS/ADDERS:

ATTIC UPGRADE			
ACCESSIBLE ATTIC SPACE ONLY, NON-ACCESSIBLE SPACES WILL BE R-38 BATT			
UPGRADE FROM R-38 TO R-49 LOOSEFILL FIBERGLASS		**ADD:**	**$1,100.00**
BLOWN EXTERIOR SHEETED WALLS			
2X4	R-15 FIBERGLASS MESH AND BLOW		
2X6	R-23 FIBERGLASS MESH AND BLOW	**ADD:**	**$2,566.00**
GARAGE			
WALLS R19			
CEILING R19		**ADD:**	**$1,558.00**
SOUND FLOOR			
ALLOW 1500 SQ FT		**ADD**	**$1,321.00**
SOUND FLOOR			
R30 AT BASEMENT AND 2ND FLOOR		**ADD**	**$3,919.00**

EXHIBIT A TO
PROPOSAL/AGREEMENT

SUNPRO Building Materials, Inc. ("SUNPRO") hereby sets forth the Special Pricing Provisions as part of the above referenced Proposal/Agreement as follows:

Notwithstanding anything to the contrary herein, Purchaser understands and agrees that the above-referenced Price is based upon current market prices for the materials to be used by SUNPRO to complete the work described above and that the market for such materials is volatile and subject to change. As a result, Purchaser understands and agrees that Price is subject to change for any portion of the materials not delivered or the work not completed within 30 days of the Proposal Date. Following such date, if the price for any of the materials to be used in the work increases above the pricing used to derive the Price, the Price shall be increased to include all sums by which the cost of such materials has increased, plus a reasonable mark-up for overhead and profit.

PRICE IS FOR BUDGET ONLY, FIELD VERIFICATION IS REQUIRED

TERMS: Purchaser shall pay SUNPRO according to Purchasers standard SUNPRO credit account terms unless otherwise stated in

ACCEPTANCE

For valuable consideration, the legal sufficiency of which is hereby acknowledged, this Proposal is accepted and is a binding contract ("Agreement"). SUNPRO is authorized to perform the work described herein. SUNPRO shall be paid according to the terms set forth herein. Purchaser acknowledges receipt of the additional terms and conditions on the reverse of this document, all of which are incorporated herein and made a part hereof.

PURCHASER:_____ **SIGNATURE:** _____

ACCEPTANCE DATE: _____ **TITLE:** _____

ADDITIONAL TERMS AND CONDITIONS OF AGREEMENT

1. Purchaser represents to be the record owner or authorized agent of the record owner of the real property that shall be improved pursuant to this Agreement (the "Property") with authority to enter into contractual agreements and to grant SUNPRO authority to perform the work identified herein. The Purchaser agrees that all materials in this Agreement will be used in the construction, alteration, or improvement of the structure(s) located upon the Property. Purchaser shall not use this document to acquire financing.

2. This Agreement shall only be modified by written change order signed by SUNPRO and Purchaser. Oral requests for change shall not be binding on SUNPRO unless reduced to writing by change order.

3. Purchaser shall assume full responsibility for the accuracy of all lines, levels, quantities, locations and measurements and their relation to the work to be performed by SUNPRO. No representation or warranty, express or implied, is made as to the quantities, sizes, grades, specifications, or other matters relating to the needs of the building project. In all cases where dimensions are governed by conditions, already established or otherwise, the responsibility for coordination of such conditions as it relates to SUNPRO's work shall rest entirely on the Purchaser. It is the Purchaser's sole responsibility to compare the items on this Agreement with plans and specifications for accuracy and completeness. Any variations or modifications from specified lines, grades or dimensions required shall be the responsibility of the Purchaser and subject to a change order should additional work be required of SUNPRO.

4. All special order items indicated by "SO" are not returnable. Purchaser is required to purchase all items produced or purchased as SO. This Agreement covers only listed items and quantities specified. Prices are subject to correction for errors in description of materials, computation of quantities, prices, and extensions. Additional purchases will be billed at prices in effect at the time of purchase. Stock items returned may be subject to a restocking fee. Manufactured items are not returnable.

5. In the event the record owner of the Property sells, mortgages, or otherwise transfers or encumbers the Property, the total amount herein provided shall become immediately due and payable as to any and all amounts then unpaid.

6. Purchaser agrees that all alleged defects in material or labor shall be made in writing to SUNPRO within ten (10) calendar days of the date of the billing invoice for the work performed. If said writing has not been made within the time period specified herein, Purchaser waives any right to claim defects and/or offsets for these alleged defects. In the event of defective work, SUNPRO's sole and exclusive liability shall be to repair or replace defective work at its discretion. In no event shall SUNPRO be liable for special, incidental, or consequential damages, including, but not limited to, loss of good will, loss of profits, or loss of use.

7. To the extent that the contracted price is based on a specified unit or square foot price, Purchaser agrees that the number of units or square feet indicated is an approximation, and that SUNPRO shall be paid in full for the actual units or square feet completed as determined by field measurement by SUNPRO.

8. SUNPRO shall not be liable for failure of performance or failure of delay in delivery by reason of any event beyond the control of SUNPRO, including, but not limited to, strikes; labor disputes; fire; flood; weather; embargo; war or other hostilities; government authority or regulation; acts of God; shortage of material or fuel; as a result of actions of Purchaser, record owner, or any other person; or as a result of the extension of time granted by Purchaser. Upon the occurrence of such delay, SUNPRO shall receive an equitable extension of time for completion of the Agreement. SUNPRO shall not be entitled to any damages or compensation as a result of said delay except to the extent that said delay was caused by the Purchaser, record owner, or persons employed by the Purchaser or record owner.

9. SUNPRO assumes no risk of non-disclosed or unforeseen conditions of the Property, including, but not limited to, hazardous substances (as defined by applicable law). In the event that hazardous substances are present on the Property (other than hazardous substances introduced by SUNPRO), Purchaser agrees to indemnify SUNPRO and its officers, directors, employees, agents, representatives, and subcontractors from and against any and all losses, claims, damages, fines, penalties, liabilities, injuries, costs and expenses (including all attorney fees and costs incurred in any civil, criminal, or administrative proceeding) arising from such hazardous substances, including, but not limited to, the presence or use, generation, storage, treatment, containment, release, threatened release, disposal of, exposure, or threatened exposure.

10. Unless otherwise noted, all federal, state, and other taxes of any nature related to this Agreement shall be borne by Purchaser.

11. SUNPRO warrants that all materials covered by this Agreement shall conform to industry standards. No implied warranties of fitness or merchantability are given and are expressly disclaimed by SUNPRO.

12. The parties agree that the prevailing party in any lawsuit arising from or as a result of this Agreement, whether the action is based on the Agreement's terms and provisions or on any other theory of liability, shall be entitled to an award of attorney fees and costs incurred in said action.

13. This Agreement is the total agreement and supersedes all negotiations, representations, prior discussions, and preliminary agreements between the Parties hereto, whether oral or written. This Agreement shall be construed and interpreted as if drafted equally by all Parties hereto.

14. This Agreement shall be governed by the laws of the State of Utah, without regard to its choice of law provisions.